# UNITED STATES
# SECURITIES AND EXCHANGE COMMISSION
**Washington, D.C. 20549**

# FORM 8-K

**CURRENT REPORT**
**Pursuant to Section 13 or 15(d)**
**of the Securities Exchange Act of 1934**

**Date of Report (Date of Earliest Event Reported): February 7, 2024**

# ELI LILLY AND COMPANY
**(Exact Name of Registrant as Specified in its Charter)**

| Indiana | 001-06351 | 35-0470950 |
|---|---|---|
| (State or Other Jurisdiction of Incorporation) | (Commission File Number) | (I.R.S. Employer Identification No.) |

| Lilly Corporate Center<br>Indianapolis, Indiana | 46285 |
|---|---|
| (Address of Principal Executive Offices) | (Zip Code) |

**Registrant's Telephone Number, Including Area Code: (317) 276-2000**

**Not Applicable**
**(Former Name or Former Address, if Changed Since Last Report.)**

Check the appropriate box below if the Form 8-K filing is intended to simultaneously satisfy the filing obligation of the registrant under any of the following provisions (see General Instruction A.2.):

☐ Written communications pursuant to Rule 425 under the Securities Act (17 CFR 230.425)

☐ Soliciting material pursuant to Rule 14a-12 under the Exchange Act (17 CFR 240.14a-12)

☐ Pre-commencement communications pursuant to Rule 14d-2(b) under the Exchange Act (17 CFR 240.14d-2(b))

☐ Pre-commencement communications pursuant to Rule 13e-4(c) under the Exchange Act (17 CFR 240.13e-4(c))

Securities registered pursuant to Section 12(b) of the Act:

| Title of each class | Trading Symbol(s) | Name of each exchange on which registered |
|---|---|---|
| Common Stock (no par value) | LLY | New York Stock Exchange |
| 7 1/8% Notes due 2025 | LLY25 | New York Stock Exchange |
| 1.625% Notes due 2026 | LLY26 | New York Stock Exchange |
| 2.125% Notes due 2030 | LLY30 | New York Stock Exchange |
| 0.625% Notes due 2031 | LLY31 | New York Stock Exchange |
| 0.500% Notes due 2033 | LLY33 | New York Stock Exchange |
| 6.77% Notes due 2036 | LLY36 | New York Stock Exchange |
| 1.625% Notes due 2043 | LLY43 | New York Stock Exchange |
| 1.700% Notes due 2049 | LLY49A | New York Stock Exchange |
| 1.125% Notes due 2051 | LLY51 | New York Stock Exchange |
| 1.375% Notes due 2061 | LLY61 | New York Stock Exchange |

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933 (17 CFR §230.405) or Rule 12b-2 of the Securities Exchange Act of 1934 (17 CFR §240.12b-2).

Emerging growth company ☐

If an emerging growth company, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 13(a) of the Exchange Act. ☐

**Item 8.01. Other Events.**

On February 7, 2024, Eli Lilly and Company (the "Company") entered into an underwriting agreement (the "Underwriting Agreement") with BofA Securities, Inc., Barclays Capital Inc., Citigroup Global Markets Inc., Deutsche Bank Securities Inc. and Mizuho Securities USA LLC, as representatives of the several underwriters named therein, for the issuance and sale by the Company of $1,000,000,000 aggregate principal amount of its 4.500% Notes due 2027 (the "2027 Notes"), $1,000,000,000 aggregate principal amount of its 4.500% Notes due 2029 (the "2029 Notes"), $1,500,000,000 aggregate principal amount of its 4.700% Notes due 2034 (the "2034 Notes"), $1,500,000,000 aggregate principal amount of its 5.000% Notes due 2054 (the "2054 Notes") and $1,500,000,000 aggregate principal amount of its 5.100% Notes due 2064 (the "2064 Notes" and, collectively with the 2027 Notes, the 2029 Notes, the 2034 Notes and the 2054 Notes, the "Notes"). Each series of Notes is being issued pursuant to an Indenture (the "Indenture"), dated February 1, 1991, between the Company and Deutsche Bank Trust Company Americas (as successor to Citibank, N.A.), as trustee, and an officers' certificate setting forth the terms of the Notes (including the forms of such Notes as exhibits). The offering of the Notes was registered on a Registration Statement on Form S-3 (File No. 333-262943). The 2027 Notes accrue interest at a rate of 4.500% per annum, payable semi-annually, and, except as contemplated in the following paragraph, mature on February 9, 2027. The 2029 Notes accrue interest at a rate of 4.500% per annum, payable semi-annually, and, except as contemplated in the following paragraph, mature on February 9, 2029. The 2034 Notes accrue interest at a rate of 4.700% per annum, payable semi-annually, and, except as contemplated in the following paragraph, mature on February 9, 2034. The 2054 Notes accrue interest at a rate of 5.000% per annum, payable semi-annually, and, except as contemplated in the following paragraph, mature on February 9, 2054. The 2064 Notes accrue interest at a rate of 5.100% per annum, payable semi-annually, and, except as contemplated in the following paragraph, mature on February 9, 2064. Upon the closing of the offering of the Notes, which occurred on February 9, 2024, the Company realized, after deduction of underwriting discounts and before deduction of estimated offering expenses payable by the Company, net proceeds of approximately $6.45 billion.

Upon the occurrence of an Event of Default (as defined in the Indenture) with respect to a series of Notes, the principal amount of the Notes of that series may be declared, and become, immediately due and payable. The Company may, at its election, redeem the Notes, in whole or in part, from time to time at the redemption prices and on the terms and conditions set forth in the Notes.

The above description of the Underwriting Agreement and the Notes is qualified in its entirety by reference to the Underwriting Agreement, the form of officers' certificate, the Indenture and the forms of the Notes filed as exhibits hereto, which exhibits are incorporated by reference herein.

**Item 9.01 Financial Statements and Exhibits.**

(d) Exhibits

| | |
|---|---|
| 1.1 | Underwriting Agreement, dated February 7, 2024, among Eli Lilly and Company and BofA Securities, Inc., Barclays Capital Inc., Citigroup Global Markets Inc., Deutsche Bank Securities Inc. and Mizuho Securities USA LLC, as representatives of the several underwriters named therein. |
| 4.1* | Indenture, dated February 1, 1991, among Eli Lilly and Company and Deutsche Bank Trust Company Americas, as successor to Citibank, N.A., as Trustee. |
| 4.2± | Tripartite Agreement, dated September 13, 2007, appointing Deutsche Bank Trust Company Americas as Successor Trustee under the Indenture listed above. |
| 4.3 | Form of Officers' Certificate setting forth the terms and form of the Notes. |
| 4.4 | Form of 4.500% Note due 2027 (included in Exhibit 4.3 above). |
| 4.5 | Form of 4.500% Note due 2029 (included in Exhibit 4.3 above). |
| 4.6 | Form of 4.700% Note due 2034 (included in Exhibit 4.3 above). |
| 4.7 | Form of 5.000% Note due 2054 (included in Exhibit 4.3 above). |
| 4.8 | Form of 5.100% Note due 2064 (included in Exhibit 4.3 above). |
| 5.1 | Opinion of Kirkland & Ellis LLP. |
| 5.2 | Opinion of Jonathan Groff, Esq. |
| 23.1 | Consent of Kirkland & Ellis LLP (included as part of Exhibit 5.1). |
| 23.2 | Consent of Jonathan Groff, Esq. (included as part of Exhibit 5.2). |
| 104 | Cover Page Interactive Data File (embedded within the Inline XBRL document). |

* *Incorporated by reference to the same-numbered exhibit of the Company's Registration Statement on FormS-3 (File No. 333-186979), filed with the Securities and Exchange Commission ("SEC") on March 1, 2013.*

± *Incorporated by reference to the same-numbered exhibit of the Company's Annual Report on Form10-K for the year ended December 31, 2008 (File No. 001-06351), filed with the SEC on February 27, 2009.*

**SIGNATURES**

Pursuant to the requirements of the Securities Exchange Act of 1934, the registrant has duly caused this report to be signed on its behalf by the undersigned thereunto duly authorized.

**ELI LILLY AND COMPANY**
(Registrant)

By: /s/ Philip Johnson
Name: Philip Johnson
Title: Group Vice President, Finance and Treasurer

Dated: February 9, 2024